and, subject to valid existing rights, the following described lands are hereby classified as suitable for conveyance to Cook Inlet Region, Inc., in accordance with paragraph I.C.(2) of the "Terms and Conditions for Land Conveyance and Management in the Cook Inlet Area" as clarified August 31, 1976, and Sec. 12(b)(6) of the Act of January 2, 1976, 89 Stat. 1151:

Parcel B, Fairbanks Meridian:

T. 1 N., R. 3 W.
Sec. 20, E½ and E½W½, those portions lying west of the west right-of-way of the Alaska Railroad.

The lands described contain approximately 361 acres.

2. PLO 5187 is hereby modified to the extent that the lands described in paragraph 1 are now considered withdrawn for selection for the purposes of Sec. 2 of the Act of January 2, 1976, and are classified for the purpose of conveyance to Cook Inlet Region, Inc., as part of its entitlement under the ANCSA.

3. This order shall not effect the lands included in Parcel A of PLO 693, as amended by PLO 1604.

4. Prior to any conveyance of the lands described in paragraph 1, the lands shall be subject to administration by the Secretary of the Interior, under applicable laws and regulations, and his authority to make contracts and to grant leases, permits, rights-of-way, or easements shall not be impaired by this order. Applications for leases under the Mineral Leasing Act, as amended, 30 U.S.C. 181–287 (1970), will be rejected until this order is modified or the lands are appropriately classified to permit mineral leasing.

Guy R. Martin,

Assistant Secretary of the Interior.

June 30, 1980.

[FR Doc. 80-20298 Filed 7-7-80; 8:45 am]

BILLING CODE 4310-84-M

Bureau of Land Management

43 CFR Public Land Order 5732

[W-71313]

Wyoming; Modification of Executive Order No. 5327 and Public Land Order No. 4522

AGENCY: Bureau of Land Management, Interior.

ACTION: Public land order.

SUMMARY: This order will modify previous orders to the extent necessary to permit the sale and conveyance of the surface estate of the following described lands which are needed for community expansion of the City of Green River, Wyoming.

EFFECTIVE DATE: July 8, 1980.

FOR FURTHER INFORMATION CONTACT: Marla Bohl, Wyoming State Office, 307–778–2336.

By virtue of the authority contained in section 204 of the Federal Land Policy and Management Act of 1976, (90 Stat. 2751; 43 U.S.C. 1714), it is ordered as follows:

1. Executive Order No. 5327 of April 15, 1930 (as modified by Executive Order No. 6016 of February 6, 1933 and Executive Order No. 7038 of May 13, 1935) and Public Land Order No. 4522 of September 13, 1968, which withdrew public lands for the protection of the multiple development of the minerals and other resources in the lands are hereby modified only to the extent described in paragraph two below and only as to the following described lands:

Sixth Principal Meridian

T. 18 N., R. 107 W.,
Sec. 24, N½, SE¼, N½SW¼ and SE¼SW¼;
Sec. 34, All.

The area described contains 1,240 acres in Sweetwater County.

2. Except as any of the above-described lands may be subject to a Reservoir Reserve Withdrawal for the Colorado River Storage Project (W–29542), the surface estate in the above-described lands may be appropriated by sale under section 203 of the Federal Land Policy and Management Act of 1976 (90 Stat. 2750; 43 U.S.C. 1713). They remain subject to Public Land Order 4522 and Executive Order No. 5327 (as modified) and their withdrawals from all other forms of appropriation under the public land laws, including the mining laws, 30 U.S.C. Ch. 2, and the mineral leasing laws except as leasing were authorized by said withdrawals.

Guy R. Martin,

Assistant Secretary of the Interior.

June 30, 1980.

[FR Doc. 80-20258 Filed 7-7-80; 8:45 am]

BILLING CODE 4310-84-M

DEPARTMENT OF HEALTH AND HUMAN SERVICES

Social Security Administration

45 CFR Part 233

Financial Assistance Programs; Need and Amount of Assistance; Using Equity Value for Resources

AGENCY: Social Security Administration, HHS.

ACTION: Final rule.

SUMMARY: This regulation clearly provides that, in determining eligibility for financial assistance, States must consider the value of a resource to be the applicant's or recipient's equity in that resource. Equity is defined as fair market value less encumbrances (legal debts). This policy reflects the court decision in *NWRO* v. *Mathews* (533 F. 2d 637).

The regulation affects applicants and recipients under the Aid to Families with Dependent Children program (title IV, Part A of the Social Security Act), and the adult assistance programs (titles I, X, XIV, and XVI (AABD) of the Social Security Act) administered in Guam, Puerto Rico, and the Virgin Islands.

EFFECTIVE DATE: This regulation shall be effective on July 8, 1980. However, we are providing a grace period of 90 days during which States that have to amend their rules and procedures in order to comply with this regulation will not be adversely affected by quality control sanctions.

FOR FURTHER INFORMATION CONTACT: Mrs. Juanita Henderson, Office of Family Assistance, Social Security Administration, 2100 Second Street, S.W., Washington, D.C. 20024, telephone (202) 245–2015.

SUPPLEMENTARY INFORMATION:

Background

Section 402(a)(7) of the Social Security Act specifies that all income and resources not otherwise disregarded must be considered in determining a person's need for and the amount of an assistance payment. The Federal regulations at 45 CFR 233.20(a)(3)(ii) (D) and (E) state:

"(D) net income available for current use and currently available resources shall be considered; income and resources are considered available both when actually available and when the applicant or recipient has a legal interest in a liquidated sum and has the legal ability to make such sum available for support and maintence.

(E) income and resources will be reasonably evaluated."

Prior to 1966, the Department permitted States to set their own resource limits; therefore, each State established the amount of resources that applicants and recipients could reserve. In 1966, however, a maximum reserve of $2,000 per person was established in the Handbook of Public Assistance Administration as an upper limit for applicants' and recipients' reserves. This provision was added to the Code of Federal Regulations in 1974. In practice, States used equity value or gross market value in evaluating resources. The $2,000